

**UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

ELBERT PARR TUTTLE COURT OF APPEALS BUILDING
56 Forsyth Street, N.W.
Atlanta, Georgia 30303

David J. Smith
Clerk of Court

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October 13, 2020

Braden Ball Jr.
Braden K. Ball, Jr., PA
40 PALAFOX PL STE 300
PENSACOLA, FL 32502

Appeal Number: 20-12897-GG
Case Style: Deepgulf, Inc., et al v. Marc Moszkowski
District Court Docket No: 3:18-cv-01466-TKW-MJF

NOTICE OF APPEAL FILED: July 31, 2020

After review of the district court docket entries, order and/or judgment appealed from, and the notice of appeal, it appears that this court may lack jurisdiction over this appeal. If it is determined that this court is without jurisdiction, this appeal will be dismissed.

The parties are requested to simultaneously advise the court in writing within fourteen (14) days from the date of this letter of their position regarding the jurisdictional question set forth on the attached page. Counsel must submit their response electronically, and do not need to provide paper copies. The responses must include a Certificate of Interested Persons and Corporate Disclosure Statement as described in Fed.R.App.P. 26.1 and the corresponding circuit rules. Requests for extensions of time to file a response are disfavored.

After fourteen (14) days, this court will consider any response(s) filed and any portion of the record that may be required to resolve the jurisdictional issue(s).

Sincerely,

DAVID J. SMITH, Clerk of Court

Reply to: Joseph Caruso, GG
Phone #: (404) 335-6177

Enclosure(s)

JUR-1 Resp reqd JQ

No. 20-12897

JURISDICTIONAL QUESTION

Please address whether the pleadings are sufficient to establish citizenship of the parties, particularly the citizenship of Toke Oil and Gas, S.A., to invoke the district court's subject matter jurisdiction in the first instance. *See* 28 U.S.C. § 1332(a), (c) (providing that a corporation is a citizen of every state or foreign state by which it has been incorporated and where it has its principle place of business); *Hertz Corp. v. Friend*, 559 U.S. 77, 88 (2010); *Vareka Inv. v. Am. Inv. Props.*, 724 F.2d 907, 909 (11th Cir. 1984) (applying § 1332(c) to foreign corporations). Insofar as the allegations may be inadequate, please address: (1) whether the allegations should be amended on appeal, pursuant to 28 U.S.C. § 1653, to cure any jurisdictional deficiencies in the current pleadings; (2) alternatively, whether current record evidence adequately establishes the parties' citizenships; or (3) whether the record should be supplemented with additional evidence to demonstrate the parties' citizenships. *See* 28 U.S.C. § 1653; *Travaglio v. Am. Express Co.*, 735 F.3d 1266, 1269-70 (11th Cir. 2013) (discussing when record evidence may be used to cure jurisdictional pleading defects, and noting that self-serving arguments and unsworn statements in trial briefs are insufficient to establish a party's citizenship); *Mallory*, 663 F.3d at 1305 (inviting appellant to file a motion for leave to amend the complaint to correct deficient allegations of citizenship). If applicable, the parties should submit any motions they consider necessary or appropriate to cure the deficiencies.

Additionally, to the extent that Plaintiff Toke Oil and Gas, S.A., and Defendant Moszkowski were both citizens of a foreign state, please address whether that destroyed alienage jurisdiction. *See* 28 U.S.C. § 1332(a)(2); *Molinos Valle Del Cibao, C. por A. v. Lama*, 633 F.3d 1330, 1340 (11th Cir. 2011) (explaining that the requirement for complete diversity means that the presence of aliens as both plaintiff and defendant destroys full diversity under alien jurisdiction, even if the aliens are citizens of different countries); *Iraola & Cia, S.A. v. Kimberly-Clark Corp.*, 232 F.3d 854, 860 (11th Cir. 2000) ("It is a standard rule that federal courts do not have diversity jurisdiction over cases where there are foreign entities on both sides of the action, without the presence of citizens of a state on both sides.").